

**ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE**

**CHAPTER 810-3-39
CORPORATION RETURNS**

**810-3-39-.02 Extension Of Time For Filing A Corporation
Return.**

(1) A corporation or an Alabama affiliated group will be granted an automatic extension to file its Alabama corporate income tax return consistent with the extension allowed for the taxpayer's corresponding federal income tax return plus one month. The corresponding federal extension form must be submitted with the return. An extension of time granted pursuant to this section is not an extension of time for payment of the tax. The amount of tax due must be paid on or before the due date of the return without regard to the extension to file the return. Any tax due, not paid on or before the unextended due date, will be subject to interest until paid at the rate provided in Section 40-1-44, Code of Ala. 1975, and all applicable penalties.

(a) Payment of the tax shall be made via the paper Business Income Tax Payment Voucher or by Electronic Funds Transfer (EFT).

(b) However, payment must be made via EFT if the payment exceeds \$750. Please refer to Alabama Administrative Rules 810-13-1-.01 and 810-13-1-.03.

(2)(a) An entity that fails to file the required return by the extended due date may not be granted an automatic extension the following (ensuing) year, but may be required to request the extension in writing.

(b) If a written request is required, the request must be made to the Commissioner of Revenue or to his designee, and must explain the reason for the request and the reason for failing to timely file the return in the previous year. The request also must state that the entity has no outstanding debts owed to the Department.

(3) Estimated Payments. Those corporations with liabilities in excess of estimated payments or credits should remit the balance due on or before the unextended due date of the return. Members of an Alabama affiliated group which have carryover payments from a prior year's filing of a separate return shall treat such carryover as a payment of estimated taxes on the Alabama consolidated return for the following year. Interest and penalties are due on all taxes not paid on or before the unextended due date. See Alabama Administrative Rule 810-3-42-.01.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 40-18-39.

History: Adopted September 30, 1982. **Amended:** June 17, 1988; filed July 27, 1988. **Amended:** Filed May 3, 2000, effective June 7, 2000. **Amended:** Filed November 26, 2008; effective December 31, 2008. **Amended:** Filed November 17, 2017; effective January 1, 2018. **Amended:** Published September 30, 2022; effective November 14, 2022.